

Justification for Other Than Full & Open Competition

1. Contracting Activity

Contracting Activity	NAVSUP WSS - Mechanicsburg	Type	A1
Folder #	240310049	PD #	
Item Manager		Work Function	Planner
		Phone	
		Code	N96163
Technician		Work Function	Reprocurement Technician
		Phone	
		Code	N96
Buyer		Work Function	Contract Specialist
		Phone	
		Code	N7M3.2

2. Description of the Action Being Approved

Description Negotiation and award of a contract through other than full and open competition.

3. Description of Supplies/Services

This J&A covers the acquisition of the following

☒ Spares ☐ Repair/Overhaul ☐ Modification ☐ Management ☐ Piece Parts ☐ Data Report

Nomenclature KU BAND AMPLIFIER **Quantity** 35

NSN 7HH 5996 016526778 **Cage Code**

P/N 8355595 **Unit Price**

Option N **Option %** 0 **Days** 0

Estimated Value

Ship To

Period of Performance: Expected Final Delivery Date

4. Statutory Authority Permitting Other Than Full & Open Competition

This J&A is based upon the authority of 10 USC 3204(A) (1), only one or a limited number of responsible sources will satisfy agency requirements, as implemented by FAR 6.302-1

5. Rationale Justifying Use of Cited Authority

A/RMC 1

Suitable for competitive acquisition for the second or subsequent time.

A/RMSC R

The Government does not own the data or the rights to the data needed to purchase / contract repair of this part from additional sources. It has been determined to be uneconomical to buy the data or rights to the data. It is uneconomical to reverse engineer the part. This code is used when the Government did not initially purchase the data and/or rights. If only one source has the rights or data to manufacture/repair this item, A/RMCs 3, 4, or 5 are valid. If two or more sources have the rights or data to manufacture/repair this item, A/RMCs 1 or 2 are valid.

This acquisition will be solicited to

MECURY SYSTEMS INC & RAYTHEON CO Based on the market research performed by the technical advocate, it is concluded that the only sources of procurement are MECURY SYSTEMS INC & RAYTHEON CO The Government does not own the data, or the rights to the data needed to openly compete this procurement requirement. The sources listed above, who is the OEM's, maintains the design and manufacturing standards via design drawings, manufacture procedures, and quality assurance procedures. There are no authorized substitutes of this item as this is the only item known to meet performance and compatibility requirements. Furthermore, NAVSUP WSS does not have sufficient data to support an open and full competition. The item has to be tested and qualify within approved testing specifications procedures, embedded coding procedures, design protocols, and internal QA requirements. Market research did not reveal, or identify any known distributors.

6. Description of Efforts Made To Solicit Offers From as Many Offerors as Practicable

15 MAR 2019 Class Waiver of the Requirement to Post a Request for Information or Sources Sought Notice applies to this requirement

The proposed contract action was synopsisized on the government-wide point of entry on

and as a result

Market research was conducted in accordance with far part 10. The results of the market research conducted (or the reason(s) market research was not conducted) are as follows

MECURY SYSTEMS INC & RAYTHEON CO A technical review, which consisted of searching several Government databases including ITIMP, FLIS and ERP, has been completed on this item. Search criteria included Part Number, Design Control Activity, Cage Code, NSN, Nomenclature, AMC/AMSC, AAC, Criticality Coding, recorded approved sourced of supply, historical sources of repair and past contracts. Based on this market research the contracting officer has determined that the only known sources of procurement are MECURY SYSTEMS INC & RAYTHEON CO If a company other than the ones listed believes that they have a compatible product, they can submit the item to the Engineering Program Office, to include research and development, drawings and test specifications. The program office may test and evaluate the item at the company's expense, when appropriate. Upon qualification, the approved company will be able to participate in current or future solicitations. ITIMP- Reviewed award history and other potential sources of supply, AMC/AMSC code, part number, CAGE code. NSEDR - Reviewed applicable drawing to this item. ERP - Search criteria included part number, NSN, Nomenclature, AAC, Criticality Coding. ISEA - Confirmed that there is no engineering support required at this time. FLIS- Search criteria included part number, design control activity, Cage code, NSN, Nomenclature, AMC/AMSC, AAC, Criticality Coding which all matched with ITIMP.

7. Determination of Fair And Reasonable Cost

The contracting officer determines that the anticipated cost to the Government of the supplies covered by this J&A will be fair and reasonable.

8. Actions to Remove Barriers to Future Competition

To promote competition, NAVSUP WSS will continue to encourage vendors with the expertise to manufacture/repair the subject item to submit a complete technical data package for review and source approval by the appropriate engineering source approval authority per the (WSS) guidelines. Also, future requirements will be advertised on the government-wide point of entry. For reasons set forth in Paragraph (5 & 6), NAVSUP WSS has no plans at this time to compete future contracts for the subject item covered by this document. If another potential manufacturing source emerges, NAVSUP WSS will assess whether competition for future requirements is feasible. Also, future requirements will be advertised on the government-wide point of entry.

Previous J&A No Previous J&A - Previously awarded under the SAT

9. Any Other Facts Supporting Other Than Full & Open Competition

N/A

History

Created By	Work Function	Created Date
	Reprocurement Technician	

I certify that the facts and representations under my cognizance which are included in this J&A are complete and accurate to the best of my knowledge and belief

Requirements Cognizance Signature	Work Function	Requirements Cognizance Signature Date
	Planner	

I certify that the facts and representations under my cognizance which are included in this J&A are complete and accurate to the best of my knowledge and belief

Technical Cognizance Signature	Work Function	Technical Cognizance Signature Date
	Reprocurement Technician	

I certify that this J&A is accurate and complete to the best of my knowledge and belief

Contracting Officer Certification Signature	Work Function	Contracting Officer Certification Signature Date
	Contract Specialist	